

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF GALIMULLIN AND OTHERS v. RUSSIA

(Applications nos. 54923/21 and 24 others –
see appended list)

JUDGMENT

STRASBOURG

7 December 2023

This judgment is final but it may be subject to editorial revision.



In the case of Galimullin and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 16 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by Mr Ivan Zhdanov, a lawyer admitted to practice in Russia.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the disproportionate measures taken against them as organisers or participants of nationwide protests in support of the jailed opposition leader, Aleksey Navalnyy. The applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

7. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications

(see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

8. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

9. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

10. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

11. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

12. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

13. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

14. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October

2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; and *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences.

V. REMAINING COMPLAINTS

15. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 12 and 14 above, the Court considers that there is no need to deal separately with these remaining complaints.

16. The Court has further examined the rest of the complaints raised by the applicants and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

17. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention, and *dismisses* the remainder of the applications as inadmissible;

4. *Holds* that there has been a breach of Article 11 of the Convention in respect of all the applicants;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 7 December 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Location and date of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
1.	54923/21 29/10/2021	**Insaf Vasilevich GALIMULLIN** 1996	Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 12/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.35 p.m. on 31/01/2021 until the court hearing on 01/02/2021.	4,000
2.	55718/21 05/11/2021	**Danil Sergeyevich KASULIN** 2002	Tver 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Tver Regional Court 19/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
3.	55754/21 05/11/2021	**Dmitriy Aleksandrovich SOLOKHA** 2002	Voronezh 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 13/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 31/01/2021 until 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
4.	55892/21 05/11/2021	**Denis Vladimirovich MUKHOROTOV** 2000	Voronezh 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 18/05/2021	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 4.11 p.m. until 10.15 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
5.	55987/21 05/11/2021	**Sana Aleksandrovna BEZMENOVA** 1975	Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Location and date of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
6.	55990/21 05/11/2021	**Petr Borisovich KARTOYEV** 1991	Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 11,000	Supreme Court of the Tatarstan Republic 12/05/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 31/01/2021;	4,000
7.	55995/21 05/11/2021	**Vadim Andreyevich GORYACHENKO** 2003	Novosibirsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 14/05/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
8.	56954/21 19/11/2021	**Yekaterina Valeryevna MALYUTINA** 1990	Vladimir 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 11,000	Vladimir Regional Court 07/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
9.	58315/21 27/11/2021	**Maksim Anatolyevich KOLBIN** 1985	Perm 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 22/07/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
10.	58526/21 09/11/2021	**Larisa Igorevna BESH** 1962	Kurgan 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Kurgan Regional Court 24/05/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
11.	58653/21 19/11/2021	**Ildar Gumarovich MEYKER** 1990	Kazan 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 26/05/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021	4,000

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12.	58692/21 19/11/2021	**Konstantin Aleksandrovich LYAYFER** 1984	Saratov 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Saratov Regional Court 24/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
13.	58846/21 27/11/2021	**Aleksandr Sergeyevich SNURNIKOV** 1981	Chelyabinsk 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 09/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
14.	58864/21 27/11/2021	**Vitaliy Vasilyevich TYUTIKOV** 2002	Kazan 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 09/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021.	4,000
15.	58905/21 27/11/2021	**Andrey Aleksandrovich MEKHONOSHIN** 1985	Perm 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 09/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	59002/21 27/11/2021	**Yekaterina Glebovna BARYSHKINA** 2002	Kazan 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 02/06/2021	Art. 5 (1) - unlawful detention – escorting to and detention at the police station after compiling an offence report from 8 p.m. on 21/04/2021 to 5.20 p.m. on 22/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
17.	59054/21 27/11/2021	**Andrey Konstantinovich DEDKOV** 1996	Volgograd 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Volgograd Regional Court 03/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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18.	59068/21 27/11/2021	**Andrey Sergeyevich KOZINSKIY** 1988	Orenburg 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Orenburg Regional Court 21/07/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
19.	59071/21 27/11/2021	**Aleksandr Sergeyevich SHUMOV** 1986	Pushkin 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow Regional Court 29/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
20.	59145/21 27/11/2021	**Aleksandr Sergeyevich PORUBOV** 1966	Khabarovsk 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 08/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
21.	59160/21 27/11/2021	**Kirill Alekseyevich KUSHIN** 2001	Perm 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 09/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
22.	59981/21 03/12/2021	**Ivan Viktorovich DROBOTOV** 1995	Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	60180/21 03/12/2021	**Yekaterina Dmitriyevna MAYEVSKYA** 1996	Khabarovsk 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Khabarovsk Regional Court 21/06/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021.	4,000

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24.	60821/21 07/12/2021	**Kirill Andreyevich BELOUS** 1997	Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 09/06/2021	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 12.30 p.m. on 02/02/2021 until 6.45 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
25.	61719/21 08/12/2021	**Vladislav Aleksandrovich SPIVAKOV** 2002	Ufa 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Bashkortostan Republic 19/07/2021	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.